IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH, NAGPUR
CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPLICATION (APL) NO. 450 OF 2022

Wasudeo Bhaurao Lanjewar ...Applicant

VERSUS

1. The State of Maharashtra, through P.S.O., Police Station Kamptee, Nagpur ...Respondents
2. Smt. Sheela Prabhakar Dongre

Mr. S. V. Manohar, Senior Advocate a/w Mr. R. K. Tiwari for the Applicant.
Mr. M. J. Khan, APP for Respondent No.1-State.
Mr. D. P. Thakre for Respondent No.2.

CORAM : VIJAY B. NIMBALKAR, J.
DATE : 2nd March 2023.

JUDGMENT:

1. Heard Mr. Manohar, learned Senior Advocate for the Applicant, Mr. Khan, learned APP for Respondent No.1 and Mr. Thakre, learned counsel for Respondent No.2.

2. The Applicant seeks quashing of Crime No. 318 of 2021 registered at Police Station Kamptee, Nagpur, for offences punishable under Sections 420, 467 and 471 of the Indian Penal Code, 1860, by invoking the inherent powers of this Court under Section 482 of the Code of Criminal Procedure, 1973 (“CrPC”).

3. The first informant alleges that the Applicant, her brother-in-law, got a registered gift deed executed in respect of an agricultural field at Kamptee by impersonating her late husband's signature on a registered will, and thereafter alienated the land.

4. Mr. Manohar submits that the Applicant has been in possession of the land for over twenty years, that the will propounded by the first informant is a suspicious document, and that the dispute is a civil one that is already the subject matter of Regular Civil Suit No. 112 of 2020.

5. The learned APP submits that the handwriting expert's report supports the allegation and that the investigation is complete. Mr. Thakre submits that the Applicant has suppressed material facts.

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6. The arguments of the Applicant on the genuineness of the will, the length of his possession and the existence of a civil suit all require the Court to enter into factual disputes and assess the probative value of documents.

7. It is well settled that in a petition under Section 482 of the Code of Criminal Procedure, 1973 this Court cannot conduct a mini-trial; the allegations in the first information report must be taken as they stand, and the only inquiry is whether they prima facie disclose a cognizable offence.

8. The first information report and the material collected during investigation disclose, prima facie, the commission of cognizable offences. The possibility of a parallel civil remedy does not oust the jurisdiction of the criminal court.

9. The application is devoid of merit and is rejected. The trial Court shall proceed uninfluenced by the observations herein.

(VIJAY B. NIMBALKAR, J.)

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